DERIVATION

Act Apr. 9, 1866, ch. 31, § 8, 14 Stat. 29.

REFERENCES IN TEXT

R. S. §§ 5506–5516 and 5518–5532, referred to in this section, related to crimes against the elective franchise and civil rights of citizens, and they were all repealed by acts Mar. 4, 1909, ch. 321, § 341, 35 Stat. 1153, or Feb. 8, 1894, ch. 25, § 1, 28 Stat. 37. However, the provisions of sections 5508, 5510, 5516, 5518, and 5524–5532 were substantially reenacted by said act Mar. 4, 1909, and are now covered by sections 51, 52, 54–59, 246, 428, and 443–445 of Title 18, Criminal Code and Criminal Procedure.

§ 55. Aid of military and naval forces.

It shall be lawful for the President of the United States, or such person as he may empower for that purpose, to employ such part of the land or naval forces of the United States, or of the militia, as may be necessary to aid in the execution of judicial process issued under sections 41–43 or 47–54 of this title, or as shall be necessary to prevent the violation and enforce the due execution of the provisions of sections 41–43, 47–56 of this title. (R. S. § 1989.)

DERIVATION

Acts Apr. 9, 1866, ch. 31, § 9, 14 Stat. 29; May 31, 1870, ch. 114, § 13, 16 Stat. 143.

§ 56. Peonage abolished.

The holding of any person to service or labor under the system known as peonage is abolished and forever prohibited in any Territory or State of the United States; and all acts, laws, resolutions, orders, regulations, or usages of any Territory or State, which have heretofore established, maintained, or enforced, or by virtue of which any attempt shall hereafter be made to establish, maintain, or enforce, directly or indirectly, the voluntary or involuntary service or labor of any persons as peons, in liquidation of any debt or obligation, or otherwise, are declared null and void. (R. S. § 1990.)

DERIVATION

Act Mar. 2, 1867, ch. 187, § 1, 14 Stat. 546.

Chapter 4.—FREEDMEN

Sec.
61. Laws continued in force.
62. Laws enforced by Secretary of War.
63. Claims for pay or bounty; payment.
64. Retained bounty fund; application for payments.
65. Who deemed wife and children of colored soldiers.

§ 61. Laws continued in force.

All laws and parts of laws pertaining to the collection and payment of bounty, prize money, and other legitimate claims of colored soldiers, sailors, and marines, or their heirs, shall remain in force until otherwise ordered by Congress. (R. S. § 2032.)

DERIVATION

Act June 10, 1872, ch. 415, § 1, 17 Stat. 366.

CROSS REFERENCE

Claims for pay or bounty for colored soldiers, sailors, or marines and payment thereof, see section 63 of this title.

§ 62. Laws enforced by Secretary of War.

The Secretary of War is authorized to carry into effect all laws and parts of laws referred to in section 61 of this title, and to this end he may employ such clerical force as he deems necessary. (R. S. § 2033.)

DERIVATION

Act June 10, 1872, ch. 415, § 1, 17 Stat. 366.

§ 63. Claims for pay or bounty; payment.

All sums due upon certificates issued, or which may be issued in settlement of claims for pay, bounty, prize money, or other moneys due to colored soldiers, sailors, or marines, or their legal representatives, shall be paid in the same manner as similar claims are paid to white soldiers, sailors, and marines, but no such certificate shall be issued until it shall have been ascertained that the application is made by the original claimant, or, if he be dead, by his true living legal representative, nor until the identity of such claimant or representative as the case may be, shall have been duly established. If an agent or attorney be employed, the allowance for his services shall not in any case exceed that contemplated in the scale of fees and allowances fixed by joint resolution July 26, 1866, No. 86, § 2, 14 Stat. 368, and no power of attorney, transfer or assignment of the amount of such claims, or any part thereof, shall in any case be recognized. (Mar. 3, 1879, ch. 182, § 2, 20 Stat. 402; Feb. 1, 1888, ch. 4, § 1, 25 Stat. 9; July 1, 1898, ch. 546, 30 Stat. 640.)

§ 64. Retained bounty fund; application for payments.

The unexpended balance of the retained fund in the custody of the Freedmen's Bureau prior to July 1, 1902, is covered into the Treasury as "Miscellaneous receipts." Upon application by parties entitled to any portion of the money so covered in, the Secretary of the Treasury is authorized and directed to pay the amount found due in the same manner and from the same appropriation as claims for bounty to volunteer soldiers are now paid. (July 1, 1902, ch. 1351, 32 Stat. 556.)

§ 65. Who deemed wife and children of colored soldiers.

In determining who is the wife or child of any colored soldier, within the meaning of this section, sections 61 and 62 of this title, and section 261 of Title 24, evidence that the soldier and the woman claimed to be his wife cohabited or associated as husband and wife, and so continued to cohabit or associate at the time of enlistment, or evidence that a form of marriage, whether such marriage was authorized or recognized by law or not, was entered into by them, and that the parties thereafter lived together as husband and wife, and so continued to live together at the time of the enlistment, shall be deemed sufficient proof of marriage; and the children born of any such marriage shall be taken to be the children embraced within the provisions of said sections whether such marriage was or was not dissolved at the time of the enlistment. (R. S. § 2037.)

DERIVATION

Res. Mar. 3, 1865, No. 29, 13 Stat. 571.

CROSS REFERENCE

Claims for pay or bounty for colored soldiers, sailors, or marines and payment thereof, see section 63 of this title.

Chapter 5.—ALIEN OWNERSHIP OF LAND

Sec.

71. Lands in Territories.
72. Same; previously acquired lands; bona fide resident aliens; mining or incorporated village lands.
73. Same; acquisition by inheritance, in collection of debts, etc.
74. Same; conveyance by aliens before escheat proceedings.
75. Same; proceedings for escheat of improperly held lands.
76. Same; condemnation and sale of lands in escheat proceedings.
77. Same; public lands.
78. Same; application to District of Columbia.
79-82. Lands in District of Columbia.
83. Public lands in Hawaii.
84. Same; conveyance or other transfer to alien.
85. Same; preference right to purchase land to persons declaring intention to become citizens.
86. Same; sale of agricultural land to persons declaring intention to become citizens.

§ 71. Lands in Territories.

No alien or person who is not a citizen of the United States, or who has not declared his intention to become a citizen of the United States in the manner provided by law shall acquire title to or own any land in any of the Territories of the United States except as hereinafter provided. The prohibition of this section shall not apply to cases in which the right to hold or dispose of lands in the United States is secured by existing treaties to citizens or subjects of foreign countries, which rights, so far as they may exist by force of any such treaty, shall continue to exist so long as such treaties are in force, and no longer. (Mar. 3, 1887, ch. 340, § 1, 24 Stat. 476; Mar. 2, 1897, ch. 363, 29 Stat. 618.)

§ 72. Same; previously acquired lands; bona fide resident aliens; mining or incorporated village lands.

Sections 71–77 of this title shall not apply to land owned in any of the Territories of the United States by aliens, which was acquired on or before March 3, 1887, so long as it is held by the then owners, their heirs or legal representatives, nor to any alien who shall become a bona fide resident of the United States, and any alien who shall become a bona fide resident of the United States, or shall have declared his intention to become a citizen of the United States in the manner provided by law, shall have the right to acquire and hold lands in either of the Territories of the United States upon the same terms as citizens of the United States. If any such resident alien shall cease to be a bona fide resident of the United States then such alien shall have ten years from the time he ceases to be such bona fide resident in which to alienate such lands. Sections 71–77 of this title shall not be construed to prevent any persons not citizens of the United States from acquiring or holding lots or parcels of lands in any incorporated or platted city, town, or village, or in any mine or mining claim, in any of the Territories of the United States. (Mar. 3, 1887, ch. 340, § 2, 24 Stat. 477; Mar. 2, 1897, ch. 363, 29 Stat. 618.)

§ 73. Same; acquisition by inheritance, in collection of debts, etc.

Sections 71–77 of this title shall not prevent aliens from acquiring lands or any interests therein by inheritance or in the ordinary course of justice in the collection of debts, nor from acquiring liens on real estate or any interest therein, nor from lending money and securing the same upon real estate or any interest therein; nor from enforcing any such lien, nor from acquiring and holding title to such real estate, or any interest therein, upon which a lien may have heretofore or may hereafter be fixed, or upon which a loan of money may have been heretofore or hereafter may be made and secured. All lands so acquired shall be sold within ten years after title shall be perfected in him under said sale or the same shall ascheat to the United States and be forfeited as provided in sections 74–77 of this title. (Mar. 3, 1887, ch. 340, § 3, 24 Stat. 477; Mar. 2, 1897, ch. 363, 29 Stat. 618.)

§ 74. Same; conveyance by aliens before escheat proceedings.

Any alien who shall hold lands in any of the Territories of the United States in contravention of the provisions of sections 71–77 of this title may nevertheless convey his title thereto at any time before the institution of escheat proceedings as hereinafter provided. If any such conveyance shall be made by such alien, either to an alien or to a citizen of the United States, in trust and for the purpose and with the intention of evading the provisions of said sections, such conveyance shall be null and void, and any such lands so conveyed shall be forfeited and escheat to the United States. (Mar. 3, 1887, ch. 340, § 4, 24 Stat. 477; Mar. 2, 1897, ch. 363, 29 Stat. 618.)

§ 75. Same; proceedings for escheat of improperly held lands.

It shall be the duty of the Attorney General of the United States, when he shall be informed or have reason to believe that land in any of the Territories of the United States are being held contrary to the provisions of sections 71–77 of this title, to institute or cause to be instituted suit in behalf of the United States in the district court of the Territory in the district where such land or a part thereof may be situated, praying for the escheat of the same on behalf of the United States to the United States. Before any such suit is instituted the Attorney General shall give or cause to be given ninety days' notice by registered letter of his intention to sue, or by personal notice directed to or delivered to the owner of said land, or the person who last rendered the same for taxation, or his agent, and to all other persons having an interest in such lands of which he may have actual or constructive notice. In the event personal notice cannot be obtained in some one of the modes above provided, then said notice shall be given by publication in some newspaper published in the county where the land is situate, and if no newspaper is published in said county then the said notice shall be published in some newspaper nearest said county. (Mar. 3, 1887, ch. 340, § 5; Mar. 2, 1897, ch. 363, 29 Stat. 619.)

§ 76. Same; condemnation and sale of lands in escheat proceedings.

If it shall be determined upon the trial of any such escheat proceedings that the lands are held